

21].) Defendant served a demand for an independent medical examination of Plaintiff on September 4, 2025, setting the examination for October 17, 2025. (*Id.* at ¶ 7, Exhibit D.) Plaintiff showed up to the examination on October 17, 2025 having recently undergone sacroiliac joint surgery. (*Id.* at ¶ 8.)

The Court finds that Plaintiff has misused the discovery process withing the meaning of CCP Section 2023.010. Section 2030.010 is not limited to the situations listed in the statute itself. “Misuses of the discovery process include, but are not limited to, the following [,,].” *CCP Section 2023.010*.

On August 28, 2025, Defendant unambiguously demanded that Plaintiff promptly notify Defendant of any surgery date. (Declaration of Caitlyn M. Harris in Support of Motion at ¶ 5, Exhibit B.) In Plaintiff’s response email dated September 2, 2025, Plaintiff did not respond one way or the other as to this particular demand for notification. (Declaration of Caitlyn M. Harris in Support of Motion at ¶ 6, Exhibit C.) The Court finds that Defendant’s demand was reasonable and would have allowed Defendant to seek further court orders, if needed, upon learning of a surgery date scheduled to occur before the IME date. The Court finds that Defendant has been prejudiced in that they were prevented from completing an IME exam that would allow them to fully investigate the extent of Plaintiff’s injury, pre-surgery.

The Court finds that Plaintiff did not act with substantial justification. Similarly, the Court finds that there are no circumstances which make the imposition of sanctions unjust.

Defendant’s motion for monetary sanctions is granted against Plaintiff / Plaintiff’s Counsel in the amount of \$2460.00, due and payable to Defendant / Defense Counsel within 30 days of the date of service of this order. The Court denies Defendant’s request for evidentiary or issue sanctions.

Plaintiff’s request for CACI instruction 204 is denied without prejudice as it is premature. The Court will entertain Plaintiff’s request for this instruction at the time of trial and based upon the evidence that has been admitted at trial.

JAVON CHRISTINA ROSS vs. RONALD DEAN SCRIVNER; ET AL.
Case No. CU24-06538

Defendant’s Motion for Compel Compliance with Deposition Subpoena for Production of Business Records

TENTATIVE RULING

Defendant RONALD DEAN SCRIVNER moves to compel The Choyce Law Firm to comply with his deposition subpoena for production of business records served September 16, 2025. The subpoena seeks all non-privileged records pertaining to Plaintiff JAVON CHRISTINA ROSS, including correspondence with doctors, experts,

insurance companies, attorneys other than The Choyce Law Firm, courts, and adverse parties, all medical records, including psychological and emotional health records, all evidence of loss of income, including wage statements and tax documents, discovery documents, pleading documents, settlement documents, and more. In short Defendant asks for The Choyce Law Firm's entire file concerning Plaintiff, whom Defendant states was represented by The Choyce Law Firm in a previous motor vehicle collision action.

The subpoena is overbroad. Defendant's stated need to discover information pertaining to Plaintiff's cervical strain injury and other alleged injuries from the collision underlying the present action does not explain why Defendant needs The Choyce Law Firm's entire litigation file on Plaintiff from the previous collision action or indeed why Defendant is seeking medical record information from Plaintiff's prior counsel instead of a health care provider.

Defendant's motion is denied.

DGDG 18, LLC vs. EBONAE WEBB-POSEY
Case No. CU25-08730

Motion to Strike Cross-Complaint

TENTATIVE RULING

C.C.P. §436(b) authorizes the court on motion to "Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court."

A cross-complaint may be filed by a party named as a defendant by a complaint (or as a cross-defendant in a cross-complaint) filed in that same action. C.C.P. §428.10.

EBONAE WEBB-POSEY ("WEBB-POSEY") filed a cross-complaint in an action in which no complaint was ever filed against her.

That alone would justify the court's striking of the cross-complaint, but there is more.

Absent grounds for revoking of any contract, an agreement in writing to submit disputes to arbitration is enforceable. C.C.P. §1281.

WEBB-POSEY signed the written purchase agreement, and in fact was the party who initiated arbitration of her claims, which later grew to include the cross-claims of DGDG against her.

Any pleading filed after the parties agreed to arbitration, and submitted to arbitration, is improper.